

109	Presley vs. Defense International Corporation, 25-01473406	Plaintiff JEREMIAH PRESLEY ("Plaintiff") will and hereby does move this Court for an order: (1) setting aside and vacating the dismissal entered in this action on March 4, 2026; and (2) enforcing the settlement agreement reached by the parties on December 8, 2025, and further confirmed in writing by Defendant's counsel on December 23, 2025, and entering judgment thereon in the amount of \$8,000.00. Initially, the court has power under CCP § 473(b) to vacate a voluntary dismissal entered as a result of "mistake, inadvertence, surprise, or excusable neglect". [<i>Zamora v. Clayborn Contracting Group, Inc.</i> (2002) 28 Cal.4th 249, 254-255.] Relief is mandatory only from those dismissals which are the "procedural equivalent of a default"; i.e., those which deprive plaintiffs of their day in court. [<i>See Leader v. Health Indus. of America, Inc.</i> (2001) 89 Cal.App.4th 603, 618.] However, CCP § 473(b) was never intended to be a "catch-all remedy for every case of poor judgment on the part of counsel which results in dismissal." [<i>Gotschall v. Daley</i> (2002) 96 Cal.App.4th 479, 483-484.] Here, Attorney Ahn declares: "10. On March 4, 2026, I filed a Request for Dismissal in this action. This filing was the product of my own inadvertent mistake. At the time of filing, I had before me Defendant's express written confirmation of all material settlement terms on December 23, 2025, Mr. Afoh-Manin's February 2, 2026 representation that the agreement had been reviewed and that he would confirm his client was "good to sign," and his February 13, 2026 representation that he would follow through. Based on these representations and my good-faith, though mistaken, belief that execution and payment were imminent, I filed the dismissal. I did not intend to relinquish Plaintiff's rights under the settlement agreement or to release Defendant from its payment obligation. The filing was not a deliberate or tactical decision. It was inadvertent error on my part, and on my part alone." In this instance, the dismissal was a result of counsel voluntarily filing a Notice of Dismissal. It is not the procedural equivalent of a default; and therefore, relief is not mandatory; but rather, discretionary. To that end, it is unclear why Attorney Ahn would file a Notice of Dismissal on 3/4/2026, when, Defendant had already missed the first payment of the alleged payment plan, which was due on 2/28/2026. [Decl. of Ahn ¶9.]
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		Nevertheless, it appears Attorney Ahn filed the dismissal on the mistaken belief that a settlement had been secured. Based on this representation of error, the Motion to Vacate Dismissal is GRANTED. As to Moving Party's request to enforce the settlement agreement, "[W]here the plaintiff has filed a voluntary dismissal of an action ..., the court is without jurisdiction to act further ..., and any subsequent orders of the court are simply void." [. (2007) 149 CA4th 83, 89, 56 CR3d 746, 750 (internal quotes omitted)] The exception to this rule is where a signed, written settlement agreement (or oral settlement before the court) states the court retains jurisdiction to enforce the settlement. [See CCP §664.6.] However, there is no evidence of an agreement for continuing jurisdiction. Furthermore, Plaintiff has not established that the parties stipulated to a settlement either orally before the court, or in a writing signed by the parties or their counsel outside Court. [CCP §664,6(a),(b).] Rather, while counsel seemingly sent emails back and forth pertaining to settlement, there is no evidence of a writing signed by the parties or their counsel herein. [Decl. of Ahn, Ex. A, B.] Therefore, the Motion to Enforce the Settlement is DENIED. <i>Moving party to give notice.</i>
110	Westcoast Therapy, Inc. vs. Xavier, 22-01256587	<u>Motion to Compel Arbitration</u> Defendant, Angelica Xavier, in pro per ("Defendant"), moves for an order compelling binding arbitration pursuant to Code of Civil Procedure section 1281.2 and staying all proceedings pending completion of arbitration pursuant to Code of Civil Procedure section 1281.4. The initial hearing on this motion was continued to allow Defendant time to file a sur-reply in response to Plaintiff's late-filed opposition. The Court has now reviewed and considered all briefing on this motion, including Defendant's sur-reply. <i>Merits</i> Defendant contends that this action arises from contracts that require mediation as a condition precedent and, if mediation fails, binding arbitration, and that despite mandatory ADR provisions, Plaintiff, Westcoast Therapy, Inc. ("Plaintiff"), initiated litigation rather than mediation or